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LA County DA, state legislators seek crackdown on fire looting

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Aproposed state law seeks tougher penalties for looting and crimes in fire zones, lawmakers and Los Angeles County District Attorney Nathan Hochman announced Monday.

Assembly Bill 469 if approved would also enable law enforcement officers to crack down on looting and the impersonation of emergency personnel during wildfires and other emergencies, according to the governor's office.

The legislation, which would close existing loopholes that can hinder prosecution, is a response to recent crimes in mandatory evacuation areas and communities devastated in the Palisades and Eaton fires, officials said.

“From the very beginning of the Los Angeles County wildfires, I have made it clear:

Our Office has zero tolerance for the despicable crimes of those seeking to exploit this crisis like looting, arson, price gouging, impersonating first responders, and financial scams," Hochman said in a statement. "We will arrest these criminals, then prosecute them, and then seek maximum sentences of prison or jail."

The bill would increase looting from a misdemeanor to a felony offense, according to the DA's office, and allow prosecutors to seek stronger penalties for looting and for impersonating emergency personnel such as peace officers, firefighters, emergency medical personnel, military personnel, utility workers and government offi- cials;

close loopholes in an effort to better protect damaged structures and vehicles in evacuation zones;

make sure protections continue beyond the active disaster through the recovery and rebuilding process; and ensure looting suspects or alleged impersonators of emergency personnel are arrested, not issued citations and released.

“Individuals who put our firefighters at risk and prey on communities when they are at their most vulnerable must be held accountable," Assemblyman Jesse Gabriel, D-Encino, said in a statement. "Looters - particularly those who impersonate emergency personnel - create chaos and confusion, endanger residents and first responders, undermine public trust in evacuation orders, divert critical emergency resources, and victimize communities that already have suffered unimaginable harm. This legislation will provide law enforcement with better tools to crack down on looting and impersonation and encourage criminals to think twice before engaging in such egregious conduct.”

Co-authors of the bill include Gabriel and Assembly members Jacqui Irwin, D-Thousand Oaks, Blanca Pacheco, D-Downey, Heath Flora, R-Ripon, and Greg Wallis, R-Bermuda Dunes.

Hochman hopes the legislation will "ensure that criminals who prey on the vulnerable at their lowest moments when they’ve lost everything face serious consequences.

Here’s the warning: Commit these crimes at your own serious peril,” he said.

AB 469 was developed in consultation with firefighters and law enforcement professionals and drew support from the California Professional Firefighters, California District Attorneys Association, California Police Chiefs Association, LA County Sheriff Robert Luna, Ventura County District Attorney Eric Nasarenko and LA County Supervisor Kathryn Barger.

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